

PROFESSIONAL CONDUCT

The Loudoun County School Board expects all staff, as public employees, to recognize that they are in a position of public trust and are held to the highest standard of personal and professional conduct.

A. Expectation of Professionalism. Employees are expected to conduct themselves professionally and model moral, ethical, legal and respectful behaviors both in and outside the workplace. Employees are expected to work collegially and collaboratively with all school personnel and stakeholders. Unacceptable behavior may include but is not limited to:

1. Bullying behavior against staff or students as defined in School Board Policy 7014 (Environments Free From Harassment, Discrimination, and Abuse) and School Board Policy 8250 (Bullying Prevention and Education);
2. Acts of physical violence;
3. Written or verbal threats of violence or harm towards others;
4. Theft of any kind;
5. Shouting, yelling, or raising one's voice in a hostile, angry, or threatening manner;
6. Misuse of School Board resources, including time, property, and technology;
7. Intentionally or negligently damaging school division or privately-owned property;
8. Use of disrespectful, discourteous, uncivil, disparaging, or demeaning words, gestures, or actions; or
9. Failure to adhere to School Board policies and regulations, state and federal laws and regulations, and school- or department-based procedures and guidelines.

B. Commitment to Equitable Treatment. The Loudoun County School Board is committed to an equitable and inclusive work and educational environment for employees and students. Discrimination or harassment on the basis of race, color, religion, national origin, sex, gender identity, sexual orientation, age, marital status, veteran status, disability, genetic information, pregnancy, childbirth, or related medical conditions, including lactation, or any other basis prohibited by law will not be tolerated. Behavior that will not be tolerated includes, but is not limited to:

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1. Harassing or discriminatory comments or conduct, including speech or other telephone, electronic, or social media communication that is motivated in whole, or in part—or is reasonably perceived as motivated—by a bias due to an individual's race, national origin, ancestry, color, sex, sexual orientation, perceived sexual orientation, gender identity, marital status, age, religion, disability, genetic information, or veteran status, pregnancy, childbirth or related medical conditions, including lactation, and contrary to or not conducive to an inclusive, safe and supportive work and educational environment.

2. Using a racial insult or slur in any context, including, but not limited to, responding to or addressing a situation in which an individual has used a racial insult or slur. This includes quoting a racial slur that has been used by others. To the extent such terms arise in the teaching or understanding of classical literature or controversial secondary civics course topics, staff must use prudence and professional judgment in ensuring these terms are not explicitly used, except as absolutely necessary in the teaching of the subject matter—and then only with the prior approval of the principal.

C. Recognition of Appropriate Employee-Student Boundaries. Employees are expected to establish and maintain appropriate physical, social and emotional boundaries with students. Unacceptable behavior may include, but is not limited to:

1. Grooming, Sexual Misconduct, and Sexual Abuse. Grooming is a method used by adults that involves building trust and/or attempting to build trust with children and/or adults for the purpose of developing an inappropriate relationship. Grooming, sexual misconduct, and sexual abuse are egregious breaches of an educator's professionalism and duty to protect children and are strictly prohibited.

- a. Per School Board Policy 7530 (Duty to Report Child Abuse and Neglect), allegations of behaviors that constitute grooming, sexual misconduct, or other forms of abuse or neglect must be reported to Child Protective Services (or Adult Protective Services, as applicable) and appropriate law enforcement agencies.
- b. Unacceptable behavior may include, but is not limited to, examples of grooming behaviors detailed in School Board Policy 7014 (Environments Free from Harassment, Discrimination, and Abuse).
- c. Engaging in an intimate, romantic or sexual relationship with a student after the student's graduation, combined with credible allegations of engaging in grooming behaviors with the student before graduation, will result in an investigation. Substantiation that such grooming behaviors occurred before the student's graduation will lead to disciplinary action up to and including termination of employment.

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2. Inappropriate or Intimate Social Relationships and Communication. The boundary of the employee-student relationship must be maintained at all times. Examples of behaviors that may constitute an inappropriate or intimate social relationship or communication with a student may include, but are not limited to:

- a. Conversations and comments of an intimate, romantic or sexual nature;
- b. Commentary on a student's physical appearance or clothing that could reasonably be interpreted as sexual, flirtatious or harassing;
- c. Physical contact with students that could reasonably be interpreted as sexual harassment or as having sexual or flirtatious intentions;
- d. Telephonic or electronic communication, unrelated to a legitimate educational purpose, that does not use an official LCPS account or have others included in the communication, such as parents/guardians or relevant others as well as social media contact, not on an LCPS official account and unrelated to school activities, to include, but not limited to, connecting with, following or friending students via social media, online gaming or email accounts or inviting/giving students access to their personal or non-official social media accounts;
- e. Prolonged, frequent or private contact between an employee and student during or outside school hours that is unrelated to academics or school activities—and outside of school hours or school activities—without the consent of a parent/guardian;
- f. Singling out students for flirtation, friendship or personal attention beyond the bounds of the employee-student relationship;
- g. Singling out students for receipt of gifts;
- h. Transporting students in personal vehicles without the knowledge and consent of a parent/guardian, and without another adult present—outside of a case-by-case approval by a supervisor for an exception to transport the student, in the event of an emergency or unusual circumstance;
- i. Entering the home of a student without the knowledge, consent and presence of a parent/guardian;

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- j. Concealing or falsifying information pertaining to student safety, health or welfare;
- k. Encouraging or assisting students' use of controlled substances such as tobacco, vaping, alcohol and drugs. Should the employee be present at any school-sponsored event or function where students are in the possession or use of these substances, the employee has a duty to report this behavior to the person in charge of the event and their immediate supervisor; and
- l. Allowing or causing students to miss instructional time for non-school sanctioned purposes.

If an employee feels that a student is contacting or engaging with them inappropriately or that the student is attempting to blur the line of the student-teacher relationship, the employee will seek immediate guidance from their supervisor.

D. Duty To Report. Employees who feel they have been subjected to conduct that may violate the expectations outlined within this policy, or who have witnessed such conduct from any LCPS employee, should notify their supervisor immediately. If the concern is about the employee's supervisor, the employee should report the complaint to the supervisor's supervisor, department head, or the Department of Human Resources and Talent Development. Students who feel they have been subjected to conduct that may violate the expectations outlined in this policy, or who feel they have witnessed such conduct, should notify a building administrator, school counselor, or the Department of Instruction's School Administration Office.

E. Protected Speech. The School Board recognizes an employee's right to engage in protected speech and their right to a private life outside of their work responsibilities. However, employees shall not poll their students to determine their political beliefs or how their parents are voting on any issue and shall not attempt to indoctrinate students with political or social philosophy. In the event LCPS receives an individualized inquiry about employee speech, including speech made via social media outside of their work responsibilities, LCPS may discipline employees in the event the employee speech:

- 1. Disrupts, or leads to a reasonable apprehension of a disruption of the learning and working environment;
- 2. Violates Virginia or federal law or otherwise violates public trust and confidence in the school division;
- 3. Constitutes unprofessional or inappropriate communications with staff, parents, students, or community members.

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Legal Refs: Code of Virginia §§ [22.1-291.4](#), [22.1-276.01](#), [22.1-287](#)

Cross Refs: Policy [7560](#) Professional Conduct, Policy [7014](#), Environments Free From Harassment, Discrimination and Abuse, Policy [7016](#), Employment Complaints, Policy [7312](#), Evaluation of Licensed, Classified, and Administrative Staff, Policy [7530](#), Duty to Report Child Abuse and Neglect, Policy [7550](#) Drug- and Alcohol-Free Workplace, Policy [8250](#), Bullying Prevention and Education, Duty to Report Sexual Harassment as provided by Title IX Regulations, [34 C.F.R. Part 106](#), Policy [8640](#), Disclosure of Personally Identifiable Information, Policy [7554](#), Employees Responsibility Concerning Student Alcohol and Drug Usage